



Republic of Kenya

THE NATIONAL FOOD SAFETY POLICY

DRAFT

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Foreword

Food safety is central to public health, food security, and improved livelihoods through trade facilitation and sustainable development. Access to safe food is a fundamental right as prescribed in Article 43 as read with Article 46 of the Constitution of Kenya. Food safety needs to be ensured by protecting the food supply from all types of hazards that may occur during all stages of food production, including primary production, harvesting, processing, transporting, retailing, distributing, preparing, storing and consumption.

Over the years, concerted efforts and initiatives have been directed at addressing improvement of food safety systems with some degree of success. However, the situation surrounding eating habits in Kenya has changed dramatically over the past three decades. New and evolving technologies have been developed and implemented to produce all types of foods with the view of meeting demand for the ever-increasing population, including foods derived from modern biotechnology. Globalization and liberalization of markets have created greater food safety challenges. The distribution systems have become much broader enhancing accessibility to a wider variety of foods from all over the world. Other challenges includes the emergence of new food-borne pathogens and known pathogen becoming more resistant or virulent hence increasing susceptibility to food-borne infections.

Several unfortunate events affecting food safety have occurred in the recent past. This, coupled with heightened awareness has resulted in increased efforts on mitigation. Food Safety by its very nature must be considered one of the shared responsibility; government, private sector and public and making use of robust up to date instruments to adequately address all food safety concerns. In order to achieve integrated food safety and control management, the policy is carefully formulated taking into account the five pillars of Food Safety and control Management namely: Food Law, Regulation and standards, Inspection Services, Laboratory services, Monitoring and Training

Successful interpretation and implementation of this policy document is expected to improve the food safety control in the country leading to health benefits to our people. The Government is committed to fully implement this policy and shall therefore strengthen the respective institutions and provide the needed resources.

Cabinet Secretary

Preface

The development of the National Food Safety Policy took into account the existence of National and County Governments. The formulation process involved and considered the views and priorities of key stakeholders. The input was achieved through wide consultations in a series of workshops, meetings, retreats and professional fora involving development partners, private sector groups, communities and teaching and research institutions.

The policy envisages an effective and efficient food safety system that aimed at securing access to safe and quality food for all, thus reducing morbidity and mortality rates arising from food borne illnesses/diseases and facilitating trade. It is expected that all players in the food safety continuum will provide the necessary infrastructure for the successful implementation of the National Food Safety Policy. The policy will be implemented through the national food control strategy; strengthening of food safety infrastructure and institutional frameworks; compliance to food safety requirements.

Continuous training, public education and awareness creation of stakeholders are to be considered key elements to the successful implementation of this policy. The core component of the policy will be driven by the enforcement of appropriate legislation that will impact the following key areas: Food safety, Public health; Plant health; Animal health; Human Nutrition; and Domestic and international trade.

The policy prioritizes the decisive management of food safety hazards, through well informed, up to date interventions that are backed by a well-coordinated mechanism that eliminates ambiguity and duplication through a hybrid mechanism undertaken through a multi-agency institutional arrangement. The respective State Departments responsible for food safety and County Governments will support review and implementation of legislations, undertake capacity development and ensure enforcement.

Principal Secretary

Acknowledgements

The drafting of the food safety policy is an outcome of tireless efforts and tremendous contribution by various experts and stakeholders, locally, regionally and internationally. Firstly, the Government of Kenya wishes to thank the Taskforce that comprised of policy makers and subject matter specialists handling food safety and policy related matters from the Ministries of Agriculture, Livestock, Fisheries and Cooperatives, Health, Trade and the EAC and relevant agencies. The task force was key in developing primary drafts that were the basis for stakeholder consultations and public participation. The task force was also involved in collating comments from various players and adding value to the document. The team also kept top leadership in the respective ministries abreast on progress and prepared requisite communication required for informing various players.

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Abbreviations and Acronyms

AFA	Agriculture and Food Authority
AfCTA	African Continental Free Trade Area
AFSI	African Food Safety Index
A.i.A	Appropriation in Aid
AMR	Anti-Microbial Resistance
AU	African Union
CAC	Codex Alimentarius Commission
COMESA	Common Markets for East and Southern Africa
DALYs	Disability Adjusted Life Years
DVS	Directorate of veterinary Services
EAC	East Africa Community
FAEA	Food and Agriculture Export Alliance
FAO	Food and Agriculture Organization
FS	Food Safety
FBOs	Food Business Operators
FIQA	Fish Safety and Quality Assurance
FNSP	Food and Nutrition Security Policy
FSCC	Food Safety Coordination Committee
GAP	Good Agricultural Practices
GHP	Good Hygiene Practices
GMP	Good Manufacturing Practices
GOK	Government of Kenya
HACCP	Hazard Analysis Critical Control Point
IEC	Information Education Communication
IGAD	Intergovernmental Authority for Development
ILRI	International Livestock Research Institute
IPPC	International Plant Protection Convention
ISO	International Organization for Standardization
JKUAT	Jomo Kenyatta University of Agriculture and Technology
FAO	Food and Agriculture Organization of the UN
KALRO	Kenya Agricultural and Livestock Research Organization
KDB	Kenya Dairy Board
KEBS	Kenya Bureau of Standards
KeFS	Kenya Fisheries Services
KEPHIS	Kenya Plant Health Inspectorate Services
KSTCIE	Kenya Standing Technical Committee on Imports and Exports
MDAs	Ministries, Departments and Agencies
M&E	Monitoring and Evaluation
NBA	National Biosafety Authority
NEP	National Enquiry Point
NEPAD	New partnership for Africa's Development
NIMES	National Integrated Monitoring and Evaluation Systems
NNA	National Notification Authority
NPHL	National Plant Health Inspectorate Services
NSB	National Standards Body
OIE	World Organization for Animal Health

PCPB	Pest Control Products Board
PHI	Post-Harvest Interval
RECs	Regional Economic Communities
RTAs	Regional Trade Agreements
SPS	Sanitary and Phytosanitary
TBT	Technical Barriers to Trade
TCs	Technical Committees
USDA	United States Department of Agriculture
VMD	Veterinary Medicines Directorate
VSVP	Veterinary Surgeons' and Veterinary Para-professionals
WHO	World Health Organization
WTO	World Trade Organization

Definitions / Glossary

Codex Alimentarius	Also referred to as “Food Code”, is a collection of international standards, guidelines and codes of practice to protect the health of consumers and ensure fair practices in the food trade. Codex standards are used worldwide to harmonize national food safety regulations and are recognized in the WTO Agreement on the Application of Sanitary and Phytosanitary (SPS) Measures as the international reference point for food safety.
Contaminant	Any biological or chemical agent, foreign matter, or other substances not intentionally added to food that may compromise food safety or suitability
Competent Authority	Means the official Government organization/agency having jurisdiction.
Feed	Any single or multiple material, whether processed, semi-processed or raw, which is intended to be fed directly to food producing animals.
Food	Means any substance, whether processed, semi processed or raw, which is for human consumption and includes drink, chewing gum and any substance which has been used in the manufacture, preparation or treatment of "food" but does not include cosmetics or tobacco or substances used only as drugs.
Food additive	Means any substance not normally consumed as a food by itself and not normally used as a typical ingredient of the food, whether or not it has nutritive value, the intentional addition of which to food for a technological (including organoleptic) purpose in the manufacture, processing, preparation, treatment, packing, packaging, transport or holding of such food resource or may be reasonably expected to result, (directly or indirectly) in it or its by-products becoming a component of or otherwise affecting characteristics of such food. The term does not include “contaminant “or substances added to food for maintaining or improving nutritional qualities.
Food handler	Any person who directly handles packaged or unpacked food, food equipment and utensils or food contact surfaces and it therefore expected to comply with food hygiene requirements
Food hygiene	All condition and measures necessary to ensure the safety and suitability of food at all stages of the food chain.
Food premises	Any facility where food is processed, prepared, packaged, stored, served or sold. Typical premises will include food factories, kitchens, canteens and catering operations, restaurants, and fast-food establishments
Food safety	All measures to ensure that food will not cause harm to the consumer when it is prepared and/or eaten according to its intended use.
Foodborne disease	A general term used to describe any disease or illness caused by eating contaminated food or drink. Traditionally referred to as food poisoning.

Food System	means value-adding activities involved in the production, aggregation, processing, distribution, consumption and disposal of food and food products.
HACCP	A science based systematic system that identifies specific hazards and measures for their control to ensure the safety of food. It assesses hazards and establishes control systems that focus on prevention rather than relying mainly on end-product testing. Any HACCP system is capable of accommodating change, such as advances in equipment design, processing procedures or technological developments.
Hazard	A biological, chemical or physical agent in, or condition of, food with the potential to cause an adverse health effect.
Pesticide	Means any substance intended for preventing, destroying, attracting, repelling, or controlling any pest including unwanted species of plants or animals during the production, storage, transport, distribution and processing of food, agricultural commodities, or animal feeds or which may be administered to animals for the control of ectoparasites. The term includes substances intended for use as a plant growth regulator, defoliant, desiccant, fruit thinning agent, or sprouting inhibitor and substances applied to crops either before or after harvest to protect the commodity from deterioration during storage and transport. The term normally excludes fertilizers, plant and animal nutrients, food additives, and animal drugs.
Pesticide Residue	Means any specified substance in food, agricultural commodities, or animal feed resulting from the use of a pesticide. The term includes any derivatives of a pesticide, such as conversion products, metabolites, reaction products, and impurities considered to be of toxicological significance.
Risk Analysis	A process consisting of three components: risk assessment, risk management and risk communication. "risk assessment" means a scientifically based process consisting of four steps: hazard identification, hazard characterization, exposure assessment and risk characterization; "risk management" means the process, distinct from risk assessment, of weighing policy alternatives in consultation with interested parties, considering risk assessment and other legitimate factors, and, if need be, selecting appropriate prevention and control options; "risk communication" means the interactive exchange of information and opinions throughout the risk analysis process as regards hazards and risks, risk-related factors and risk perceptions, among risk assessors, risk managers, consumers, feed and food businesses, the academic community and other interested parties, including the explanation of risk assessment findings and the basis of risk management decisions;

Street vended- food street food	Foods prepared and/or sold by vendors in streets and other public places for immediate consumption or consumption at a later time without further processing or preparation. This definition also includes fresh fruits and vegetables, which are sold outside authorized markets for immediate consumption.
Surveillance	data acquisition to determine status and performance of food safety control system
Unsafe food	means the food whose nature, substance or quality is so affected by any means as to render it injurious to human health.

Executive Summary

The Kenyan food safety control system is multi-sectoral in approach and is embodied in several statutes implemented by various Government ministries/departments and regulatory agencies. The coordination mechanism among these institutions is currently inadequate. Further, existing food legislation is currently derived from Acts that have not been reviewed for a long time, and attempts to make changes have been piecemeal. This has created inefficiencies in the national food safety control system resulting in recurrence of food related hazards, rejections of food exports by importing countries and other undesirable consequences.

The overall objective of this policy is to protect public health and promote trade in safe food in a manner consistent with WTO/SPS and other international requirements through the establishment and maintenance of an integrated farm to fork food safety system that harmonizes inter agency efforts and minimizes duplication and overlaps.

This policy addresses food safety challenges in the broad areas of legislation, institutional framework, monitoring and evaluation, resources, information, education and communication, traceability, infrastructure, training and capacity; emerging and re-emerging food safety issues; validation, inspection, certification and self-assessment; institutional framework and monitoring and evaluation.

The Government will establish a coordination mechanism to harmonize operations and provide oversight over all food safety lead agencies. The proposed mechanism will undertake food safety risk assessment, and will be independent from risk management agencies.

A participatory implementation plan for this policy will be developed. The plan will embrace performance measures for actions and initiatives outlined in the policy that then can be used to gauge the overall progress towards effective and efficient food safety management system in Kenya.

While the policy provides for official food safety control system both at the National and County levels and although the responsibility of food safety rests with all players along the food chain, the overall responsibility lies with the Food Business Operator (FBO).

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1. INTRODUCTION

1.1 Background

Access to sufficient amounts of safe and nutritious food is key to sustaining life and promoting good health. Unsafe food is a threat to Food Security and an impediment to national development. Global concerns about unsafe food are rising with biological, physical, or chemical hazards contributing to more than 200 known diseases, ranging from diarrhea to cancers (WHO, 2020). According to the health authority, an estimated 600 million (almost 1 in 10 people in the world) fall ill from food borne illnesses, resulting in about 420, 000 deaths resulting in the loss of 33 million Disability Adjusted Life Years (DALYs). A significant proportion of the impact is felt in the African, continent, where unsafe food is responsible for about 91 million cases of food borne illnesses annually, and of these 137,000 die prematurely (WHO, 2019). In Kenya over 70% of all episodes of diarrhea are attributed to ingestion of contaminated food and water (MoH Database, 2020). Aflatoxins continue to be detected in human food in Kenya (Okoth and Kola, 2012, Mutiga et al, 2015). Kang'ethe et al, 2017) reported cases of exposure of children younger than five years to aflatoxins with tests showing the presence of aflatoxins in their urine.

In 2010, the 63rd World Health Assembly adopted a resolution to advance food safety to:

- i.) Provide the evidence base for measures to decrease foodborne health risks along the entire food-chain;
- ii.) Improve international and national cross-sectoral collaboration, including communication and advocacy; and
- iii.) Provide leadership and assist in the development and strengthening of risk-based, integrated national systems for food safety.

The Second International Conference on Nutrition (ICN2) held in November 2014, also reiterated the importance of food safety and fortressing the need for establishing and implementing effective food safety systems that ensure food producers and suppliers along the whole food chain operate responsibly and supply safe food to consumers.

In response to delivering on the global commitments, the Heads of States of the African governments in 2018 prioritized enhanced Sanitary and Phytosanitary Standards protocol and Compliance to boost intra-African Trade in Agricultural Commodities and Services, improve agricultural productivity and strengthen health protection. AU memberstates face significant demands to enhance their SPS capacity to improve agricultural productivity, strengthen health protection and/or boost regional and international trade. It is therefore paramount to have a policy framework on sanitary and phytosanitary standards (SPS) measures and structures to ensure that as AU member Kenya has a robust Sanitary and Phytosanitary (SPS) measure in place, to ensure that human, animal and plant health are protected.

The international framework for food safety has developed significantly through enhanced role of World Health Organization (WHO) for Human Health; Codex Alimentarius Commission (CAC) for Food safety; Office International des Epizootics (OIE) for Animal Health; and the International Plant Protection Convention (IPPC). These organizations (WHO, CAC, OIE and IPPC) and the World Trade Organization (WTO) formalized linkages through the WTO/SPS Agreement in which Kenya is a signatory.

Kenya has over the years developed a vibrant food industry, with food demands being met both through local production and importation. The local supply chain of most food commodities is driven through an informal structure, accounting for about 90% of the traded food commodities. In addition to its primary contribution to human sustenance, the food industry is a leading sector for Kenya's economy, with an annual gross domestic product contribution of about Kshs. 276.29 billion (KAM Report, 2018). The industry is one of the largest employers of the Kenyan population with close to a million employees, of which 30% are in small and medium enterprises. The agricultural sector has an annual production of about 51% of the GDP and provides 40% of the total population and 70% of the rural population with employment (Usaid.gov, 2021). It is estimated that 80% of the Kenyan population is gainfully employed in food and feed production (FAO, 2021). In 2017, exports of agricultural products, which account for 65% of all export products, earned the country KES. 153.68 billion in foreign exchange (World Bank, 2019).

The scientific evaluation of known or potential adverse health effects resulting from human exposure to foodborne hazards is not adequately done. Empirically, there has been inadequate of scientific input and investment in a robust risk management system, and upgrading of infrastructure to support risk assessment. While attempts have been made to review the laws, the approaches have been piecemeal and hence have not resolved the food safety challenges that prevail. For example, street vended foods have not been formally recognized in the various legislative frameworks. The role of private sector in food control remains underutilized despite its role in food production and supply. Communicating risk has had its fair share of inadequacies while weak, fragmented and competing food analysis laboratories has contributed to delayed enforcement of food safety requirements.

It is important that the quality of Kenya's food supply chain meet the highest safety standards for both domestic and international market demands. The role of food and its economic importance in Kenya dictates a prime interest in food safety as a whole, and in particular by public authorities involved.

2.0 SITUATION ANALYSIS

2.1 International Food Safety Framework

Food safety system, globally and nationally are faced with various challenges that hinder safe production and trade. The international framework as regards food safety has developed courtesy of the role of three international bodies namely; Codex Alimentarius Commission, (CAC) Office International des Epizootics (OIE) and the International Plant Protection Convention (IPPC).

The Codex Alimentarius Commission (CAC) was formed as a Joint FAO/ WHO Food Standard Program in 1961. It is a collection of internationally recognized standards, codes of practice, guidelines and other recommendations relating to foods, food production and food safety. The Commission is mandated to ensure consumer health and fair practices in food trade. These are achieved through the development of standards and guidelines through expert committees, namely Joint Meeting for Pesticide Residues, (JMPR), and Joint Expert Committee on Food Additives, (JECFA), adhoc, General Subject and commodity committees.

World organization for animal health Office International des Epizootics (OIE) was established following outbreaks of Rinderpest in Europe. Its main task has been on; global dissemination of information obtained from members on outbreaks of animal diseases; collection, analysis and dissemination of scientific information on animal diseases control; technical and institutional support to developing countries in their efforts to build capacity to control animal diseases, and setting standards that countries can use to protect themselves against the introduction of disease, pests or pathogens.

International Plant Protection Convention (IPPC) operates under the auspices of FAO. It was created as part of an international treaty with the aim of preventing spread and introduction of pests of plant and plant products and to promote appropriate measures for control. The Standards set by this body are implemented through the International Standards for Phytosanitary Measures (ISPMs)

The linkages among CAC, OIE and IPPC in relation to trade were formalized following the WTO/SPS Agreement. The Agreement on Sanitary and Phytosanitary (WTO-SPS) measures entered into force with the establishment of the World Trade Organization on January 1, 1995. The agreement provides a multilateral framework of rules and disciplines to guide the development, adoption and enforcement of sanitary and phytosanitary measures in order to minimize their effects on trade. It applies to all sanitary and phytosanitary measures that may, directly and indirectly, affect international trade.

The Agreement also sets out the basic rules for food safety and animal and plant health standards and allows countries to set their own standards. However, regulations must be based on scientific principles and applied only to the extent necessary to protect human, animal and plant life or health. These measures should not arbitrarily or unjustifiably discriminate between countries where identical or similar conditions prevail or are misused for protectionist purposes. Therefore, these measures should not be used to create barriers to free trade but only imposed to protect human, animal or plant health on the basis of scientific information.

Regionally, Kenya is a member state of AU, EAC, COMESA, Tripartite, African continental free trade area (AfCTA) and NEPAD. These trading blocs draw membership from the countries in the

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region. AU member states committed to support the Africa food safety agenda particularly Africa Food Safety Index (AFSI), an information and data gathering tool matrix. African food safety experts are responsible for setting food standards, guidelines and codes of practice to ensure food safety in the continent. Currently EAC and COMESA are in the process of harmonizing food safety regulations and standards.

During its 18th Ordinary Session – held in January 2012 in Addis Ababa, Ethiopia – the Assembly of the Heads of State and Governments of the African Union adopted a decision – Assembly/AU/Dec.394 [XVIII] – to establish a Pan-Africa Continental Free Trade Area (AfCFTA). Further discussions were held on the priorities in the AfCFTA Protocol with the development of an Annex on SPS Measures. As part of the Agreement, the Committee on Sanitary and Phytosanitary Measures – previously referred to as Continental SPS Committee – and a Committee for Technical Barriers to Trade were formed (TRALAC, 2019).

The main regional food safety frameworks include the COMESA Food Safety Regulations under the Green Pass System and the EAC SPS Regulations and Food Safety Measures. An EAC SPS Protocol was signed by the Partner States in 2013, committing the Partners to cooperate in the harmonization of plant health, animal health and food safety measures.

The Constitution of Kenya in Articles 43 as read with 46 guarantees all safe, quality and nutritious food. The Government of Kenya, therefore, prioritizes successful implementation of the food safety policy, which will compliment several existing national policies in providing a framework for a safe, sustainable and ethical food system.

Further, the Kenya Vision 2030 is the long-term development blueprint for the country. The aim of the Vision 2030 is to transform Kenya into a newly industrializing, middle-income country providing a high-quality life to all its citizens by the year 2030 with the overarching vision of creating “a globally competitive and prosperous nation with a high quality of life by 2030”.

In Kenya, Food Control System is managed by various agencies under different ministries and using several laws. This is with an aim of promoting public health, protecting the consumer against health hazards and enhancing economic development. The scientific evaluation of known or potential adverse health effects resulting from human exposure to foodborne hazards is not adequately done. Historically, there has been a lack of scientific input and investment in a robust risk management system, resulting in a reactionary approach to addressing food safety concerns.

2.2 Kenya Food Safety Policies

Reports on foodborne disease incidences are rampant on national media, ranging from isolated cases of food poisoning among individuals and groups of consumers to a worrying trend in failure to meet safety standards for food presented for sale. While there is a felt need for strong food safety policy to address these challenges, current policies on food safety are incoherent and do not clearly define responsibilities for food safety oversight in the country.

Notwithstanding the fundamental right to safe food, there is underinvestment and poor capacity to develop tools for ensuring that right is met, and this could be associated with low political priority and limited drivers for food safety. Limited public resources and many competing priorities have also impeded progress in food safety governance in Kenya.

2.2.1 The National Food Safety Policy 2013

In recognition of the constitutional right of its people to safe food by the Government of Kenya, a National Food Safety Policy was developed by the Ministry of Health and adopted in 2013. The overall goal of the policy is to establish and maintain a rational, integrated farm-to-fork food safety system that harmonizes inter-agency efforts, minimizes inter-agency conflict and overlap, and ensures the protection of public safety and food trade consistent with WTO/SPS and other international requirements. The lack of clarity in the institutional set up, limited statements of the role and functions of the proposed Food Safety Authority; lack of detail to address key food safety concerns and lack of clarity in streamlining institutional mandates render the 2013 Policy an insufficiently precise guide for building a responsive food safety system.

2.2.2 The National Agricultural Policy

Provides for food safety and has the objective of ensuring supply of safe food of either plant or animal origin from the farm to fork in order to protect human health. It also guides on animal feed to ensure the safety of livestock, fish and other domestic animal feeds.

2.2.3 Livestock Policy, Sessional No 3 of 2020

It provides for promotion of animal health and food safety to facilitate local and international health.

2.2.4 Veterinary Policy 2020

Provides for professional safeguard of animal health and welfare, safe animal production and productivity and promotes trade in animals and animal products for sustainable food security, food safety and economic prosperity. The policy additionally provides for regulation of food safety and food defense.

2.2.5 National Fisheries Policy

The Policy states that hygienic conditions will be ensured during farm management and in the post-harvest period for fish.

2.2.6 National Policy on Prevention and Containment of Antimicrobial Resistance

This is a joint venture between the Ministries of Health and Agriculture, Livestock and Fisheries and leans on the one-health approach to promote prudent use of antimicrobial agents to ensure that there is continued successful treatment and prevention of microbial diseases by ensuring that effective, quality and safe antimicrobial are accessible to all who need them. The policy interventions address, improving awareness and understanding of antimicrobial resistance; Strengthening the knowledge and evidence base on Antimicrobial Resistance; reducing the incidence of infection; Optimizing the use of antimicrobials in human, animal and plant health; and supporting sustainable investment in new medicines, diagnostic tools, vaccines and other interventions. It recognizes the diversity in the different sectors and emphasizes that an all-out effort is needed to effectively combat AMR.

2.2.7 Food and Nutrition Security Policy (FNSP) 2011

In 2011, the Government developed the Food and Nutrition Security Policy as an overarching framework covering the multiple dimensions of food security and nutrition improvement in Kenya. It recognizes the need for multi-sectoral and public-private involvement while acknowledging that hunger eradication and nutrition improvement is a shared responsibility of all Kenyans. One of the policy objectives of the FNSP is to ensure safe, high quality food by creating public awareness on relevant food safety matters, and by setting, promoting and enforcing appropriate food. The private sector is expected to play a substantial role to improve food safety. The Policy recognises that key laws that deal with food safety (which include the Public Health

Act Cap 242, The Food, Drugs and Chemical Substances Act Cap 254, and the Standards Act Cap 496 of the Laws of Kenya) are not in conformity with current international standards and guidelines and need to be revised and adapted based on the Hazard Analysis Critical Control Point (HACCP) and good manufacturing practices.

2.2.8 The Kenya Health Policy

In 2014, the Government concluded the Kenya Health Policy (2014–2030) with the aim of attaining the highest possible standards of health in a responsible manner through supporting equitable, affordable and high-quality health and related services at the highest attainable standards for all Kenyans. One of the priorities outlined is the improvement of nutrition and food safety throughout the life-course. However, the Policy does not define how this will be achieved.

2.3 Food Laws and Regulations

The development of relevant and enforceable food laws and regulations is an essential component of a modern food control system. In spite of Kenya having several of these, there have been lapses in enforcement. Moreover, the various food laws have not adequately addressed domestic food safety governance, which has had serious implications on public health protection and trade in food.

The Constitution incorporates the general rules of international law as forming part of the law of Kenya. Treaties and international agreements have to be adopted through domestic laws and in the event of conflict, the national law prevails over the treaty/international agreement.

2.3.1 Crops Act 2013

The Crops Act 2013 aims to reduce unnecessary regulation or overregulation of the crops subsector. The Act mandates for the Agriculture and Food Authority to regulate safety of crop and crop product while in the field, crop and crop product while in the licensed warehouses and development of rules for ensuring food safety including handling, transportation, processing and market standards of food crops and crop products; to establish and enforce standards in grading, sampling and inspection, tests and, analysis, specifications, units of measurement, code of practice and packaging, preservation, conservation and transportation of crops to ensure health and proper trading; and to secure domestic food supply for the country.

2.3.2 Agriculture and Food Authority Act 2013

Agriculture and Food Authority Act 2013 provides for creation of Agriculture and Food Authority which implements the Crops Act 2013. It also provides for agricultural land use guideline including fields where food crops and pastures are grown.

2.2.3 The Food, Drugs and Chemical Substances Act (Cap 254)

2.3.3 The Food, drugs and Chemical Substances Act (Cap 254) is an Act of Parliament enacted in 1965 to make provision for the prevention of adulteration of food, drugs and chemical substances and for related and incidental matters. The Act prohibits sale of unwholesome, poisonous or adulterated food. In addition labelling, packaging, treatment, processing, selling or advertising of any food in contravention in a manner that is false, misleading or deceptive is strictly forbidden. The Act makes provisions for food standards and requires strict compliance to food standards in labelling, packaging, selling or advertising of any food, and prohibits against sale of food not of nature, substance or quality demanded by the purchaser. The Act demands that hygiene be observed throughout food preparation, packaging, conveyance, storage and display.

2.3.4 Dairy Industry Act CAP 336

The Dairy Industry Act (Cap 336) provides for inspection and licensing of milk handling premises and surveillance on the quality and safety of milk and milk products along the dairy value chain. The Act provides for establishment of KDB and gives it power to develop subsidiary legislation. KDB regulates producers, processors, importers and exporters, it provides for development and enforcement of quality standards, but the Act does not make mention of food safety standards. Even for imports and exports of dairy products the focus in standards is on quality aspects. The Kenya Dairy Board (KDB) registers and controls FBOs in milk and milk products in accordance with the Dairy Industry Act (Cap 336).

2.3.5 Fisheries Management and Development Act, 2016

An act of Parliament to provide for the conservation, management and development of fisheries and other aquatic resources to enhance the livelihood of communities dependent on fishing and to establish the Kenya Fisheries Services. Section 58 provides that the Ministry responsible for the Service shall be the competent authority responsible for the official control of the safety of fish, fish products and fish feed. The State Department of Fisheries registers FBOs in the Fisheries Sector in accordance with the Fisheries Management and Development Act (2016), and is responsible for the official control of the safety of fish, fishery products and fish feed. It also issues health certification of fish, fishery products and fish feed.

2.3.6 Kenya Plant Health Inspectorate Service Act, 2012 (No. 54 of 2012).

It establishes the Kenya Plant Health Inspectorate Service as a regulatory body for the protection of plants, seeds and plant varieties and agricultural produce, The Act requires KEPHIS to support the administration and enforcement of food safety measures.

2.3.7 Pest Control Products Act cap 346

Assessing and evaluating pest control products (pesticides) for their safety to human, animal and environmental health. It also ensures pest control products used in food production are of high quality and efficacious.

2.3.8 Veterinary Surgeons' and Veterinary Para-professionals (VSVP) Act (No.9 of 2011)

Makes provision for the training, registration and licensing of veterinary surgeons and veterinary para-professionals; and to provide for matters relating to animal health services and welfare

2.3.9 Fertilizer and Animal Feedstuff Act Cap 345

The Act regulates the importation, manufacture and sale of agricultural fertilizers and animal foodstuffs and substances of animal origin intended for the manufacture of such fertilizers and foodstuffs.

2.3.10 Meat Control Act Cap 356(Rev. 1980)

The Meat Control Act was enacted to enable control to be exercised over meat and meat products intended for human consumption and over slaughterhouses and places where such meat is processed. It also provides for import and export control over meat and meat products. It gives power to the Minister responsible to make regulations, among others, “specifying standards, in consultation with the Minister for the time being responsible for health, to be observed in respect of the manufacture of meat products, including the name or description, composition, additives or contaminants, labelling and packaging of such products”.

2.3.11 Animal Disease Act Cap 364.

Provides for matters relating to animal diseases. Control of zoonotic diseases is critical to food safety

2.3.12 Biosafety Act No. 2 of 2009,

To regulate activities in genetically modified organisms including those for food and feed.

2.3.13 Health Act, 2017;

Requires establishment of The National Health System that ensures supply of safe food, minimizes spread of foodborne diseases, hygienic food and developing risk-based, sustainable, integrated food safety systems.

2.3.14 Public Health Act Cap 242 (Rev.2002)

Public Health Act Cap 242 is an Act of Parliament enacted to make provision for securing and maintaining health. It provides a broad scope on public health. In food safety, the Act creates subsidiary legislation including: The Public Health (Milk and Dairies) Rules; The Public Health (Meat Inspection) Rules; and The Public Health (Importation of Meat) Rules. In this regard the Act provides overlapping mandates to various government institutions on inspection of meat and milk products, and general food products. This includes, for example, local authorities in various municipalities and towns.

2.3.15 Nuclear Regulatory Act, 2019;

An Act of Parliament to provide for the protection of the public and radiation workers from the dangers arising from the use of devices or material capable of producing ionizing radiation.

2.3.16 Alcoholic Drinks Control (No 4 of 2010)

An Act of Parliament to provide for the regulation of the production, sale and consumption of alcoholic drinks.

2.3.17 Standards Act Cap 496.

Standards Act Cap 496 is an Act of Parliament enacted in 1974 to promote the standardization of the specification of commodities and to provide for the standardization of commodities and codes of practice; it establishes the Kenya Bureau of Standards with the broad functions of promoting standardization in industry and commerce; provision testing and metrology services; administration of quality marks related to standardization; assisting government agencies & local authorities in development of sector specific standards and conformity assessment activities. It therefore also gets involved in the development of Food and agriculture products standards that addresses themselves to quality and safety aspects including compositional, labelling as well as microbiological, contaminants and food additives limits

2.3.18 Competitions Authority Act

The Competition Authority is established under the Competition Act No. 12 of 2010. The authority is mandated to ensure protection of the consumers from unfair and misleading market conduct among other obligations. This has an impact on food safety

2.3.19 Consumer Protection Act, 2012

This Act provides for the protection of the consumer, prevention of unfair trade practices in consumer transactions and connected purposes. The purpose of the Act is to promote and advance

the social and economic welfare of consumers in Kenya including the requirement to supply goods of merchantable quality. Food safety is a consumer protection issue.

2.3.20 The Water Act, 2016 CAP 372

The Act provides that every person in Kenya has the right to clean and safe water in adequate quantities and reasonable standards of sanitation.

2.4 Food Safety Institutional Framework

There are several institutions and agencies involved in food safety control systems. Each agency operates independently to fulfill its mandate as provided by the law establishing it. This necessitated the formation of the National Food Safety Coordination Committee (FSCC), which is an ad hoc committee without any legal basis to provide coordination.

2.4.1 Ministry responsible for Agriculture

The ministry has responsibility to ensure sustainable development of agriculture for food security and economic development. The ministry has three statement departments, all of which share a mandate in food control, namely:

i.) **State Department of Crops Development and Agricultural Research**

The main mandate of the State Department of Crops & Agricultural Research is the formulation, implementation and monitoring of crop legislations, regulations and policies. In addition, the Department also carries regulation and quality control of inputs, produce and products from the agricultural sector; management and control of pests; and collecting, maintaining and managing information on agricultural sector. The State Department is responsible for matters of food safety policy to promote food and nutrition security in the country. The Ministry chairs the National Food Safety Coordination Committee. Within the State Department, the following agencies are found:

- **Agriculture and Food Authority (AFA)**

The Agriculture and Food Authority (AFA) is a Government parastatal in the Ministry of Agriculture charged with the responsibility of ensuring safe production, handling, transportation, processing and marketing of food crops and crop products. The AFA Act, 2013 establishes AFA, and provides for regulation of the production, processing, marketing, grading, storage, collection, transportation and warehousing of agricultural and aquatic products. The Authority through its directorates enforces food safety standards, codes of practices, inspections, surveillance, sampling, tests and analysis of crop produce and products. AFA has recently developed new regulations to aid in the regulation of the crops subsector in a whole chain approach. Under this Act, AFA is mandated to provide conformity assessment services and charge fees.

The Crops Act 2013 mandates AFA to establish and enforce standards in grading, sampling and inspection, tests and analysis, specifications, units of measurement, code of practice and packaging, preservation, conservation and transportation of crops to ensure health and proper trading. It also mandates AFA to ensure secure domestic food supply for the country and prescribes regulation measures with respect to each scheduled crop. With regard to certification, AFA licenses actors and charges levies and breeder royalties on all scheduled crops. However, AFA does not currently certify agricultural products before they are traded. The Authority also

regulates imports crop produce and products and facilitates export of the same to various destinations.

- **Kenya Plant Health Inspectorate Service (KEPHIS)**

Kenya Plant Health Inspectorate Service (KEPHIS) is the government parastatal whose responsibility is to assure the quality of agricultural inputs and produce to prevent adverse impact on the economy, the environment and human health. The Kenya Standing Technical Committee on Imports and Exports (KSTCIE) has secretariat at KEPHIS and approves importation of biological agents.

Main functions in food safety include Monitoring (sampling and testing) of pesticide residues in crop products. KEPHIS provides testing services in analytical chemistry. The services provided by the KEPHIS analytical chemistry laboratory (ACL) to its clients include: Pesticide residue testing and certification of analyses of produce; Heavy metal contaminant testing and certification of analyses of produce; and oversight of due diligence in production systems as an official control function. These functions are performed in support to food safety requirements for plant based agricultural products and to ensure compliance of products with specific market standards as well as for assurance of quality of agro-inputs (fertilizer formulations, pesticide formulations, irrigation water quality) and testing of and soils for fertility status.

- **Pest Control Products Board (PCPB)**

Assessing and evaluating pest control products (pesticides) for their safety to human, animal and environmental health. It also ensures pest control products used in food production are of high quality and efficacious. The board determines the pre-harvest interval (PHI) for all pesticides which in turn informs on the residues of pesticides in food. The board is the designated national authority (DNA) on pesticides under the Rotterdam convention that domesticates decisions of the convention on banning or restricting use of certain pesticide molecules.

ii.) **State Department of Livestock**

The mandate of the State Department of Livestock is to promote, regulate and facilitate livestock production for socio-economic development and industrialization in accordance with the Animal Diseases Act (Cap 364). The core functions of the State Department of Livestock include: formulation, implementation and monitoring of policy; development and co-ordination of programmes; regulatory management and quality control of inputs, produce and products; Management and control of diseases and pests; provision and facilitation of extension services; research agenda setting, liaison and coordination; and management and conservation of the natural resource base, among others. The Department has two technical directorates: Directorate of Animal Production and Directorate of Veterinary Services (DVS).

- **Directorate of Veterinary Service (DVS)**

The Veterinary Public Health Division is charged with the responsibility of inspection and certification of food of animal origin namely meat and meat products, milk, honey and eggs as well as animal feeds. It approves establishments for meat and meat products and milk processing Plants for purposes of local and international trade. The DVS oversees meat inspection services in the country.

The Meat Control Act, the Dairy Act and the Public Health Act mandate Directorate of Veterinary Services (DVS) to regulate food safety aspects for food of animal origin. The DVS was established to prevent and control animal diseases and pests in order to safeguard human health, improve animal welfare, increase livestock productivity, ensure high quality livestock and their products and facilitate domestic and international trade.

- **Veterinary Medicine Directorate (VMD)**

Responsible for Safety of veterinary medicines and devices including pest control products on animal. VMD monitors residues of veterinary drugs and approves VM drugs and limits in food of animal origin.

- **Directorate of Livestock Production**

The Directorate of Livestock Production has the mandate to promote, regulate and facilitate livestock production for social economic development and industrialization. The Directorates functions include to: formulate, facilitate implement, monitor and review livestock production policies and strategies, collaborate in development, regulation and enforcement of standards of live animals, livestock inputs, products and services; management and control of forage diseases and invasive plants; regulate and set standards for animal husbandry technologies and extension services; set livestock production research agenda and provide liaison; manage livestock production information; monitor and manage livestock feed and food security; conserve and manage animal genetic resources; facilitate development and rehabilitation of livestock marketing infrastructure; promote marketing of livestock and livestock products locally and internationally; build capacity of counties on livestock production services; formulate and coordinate national and regional livestock production programs; ensure disaster preparedness, management and mitigation on livestock production; regulate quality of training and curricula of livestock production training institutions; coordinate the sustainable use of natural resources for livestock development; manage and mitigate climate change effects on livestock production and promote public private partnerships.

- **Kenya Dairy Board (KDB)**

The Kenya Dairy Board (KDB) established in 1958 under the Dairy Industry Act (CAP 336), to organize, regulate and develop the dairy industry in Kenya, mainly for settler farmers. Its main role was to ensure efficient production, marketing, distribution and supply of milk and dairy products, including by ensuring stable prices, improving the quality of dairy produce, and promoting market research and private enterprise in the production, processing and marketing of dairy produce. It regulates the industry through: i) regulating milk handling practices to safeguard public health; ii) issuing licenses for domestic and export trade; iii) advising government on the orderly development of the sector; and iv) levying cess from dairy producers to finance its operations. With the liberalization and decontrol of milk prices, KDB's role in the dairy industry was re-evaluated to focus more on dairy development and promotional activities on the one end, and dairy industry regulation on the other.

iii.) **State Department of Fisheries**

The mandate of the State Department of Fisheries is to provide for the exploration, exploitation, utilization, management, development and conservation of fisheries resources, and undertake research in marine and freshwater fisheries in accordance with the Fisheries Management and

Development Act, 2016. The Department ensures the safety of fish and fishery products by putting into consideration measures necessary to protect and safeguard the health of consumers, and to ensure sustainability of local and export markets.

- **Kenya Fisheries Service (KFS)**

The KFS is the Competent Authority (CA) on fisheries in accordance with “The Fisheries (safety of fish, fishery products and fish feed) Regulations, 2007”, which came into force on 21st September 2007 as Legal Notice No. 170. As CA, the KFS works in partnership with stakeholders in the private and public sectors to ensure sustainable management of the fishery resources in the country and sustained market access.

2.4.2 Ministry of Industry, Trade and Cooperatives

The State Department for Trade (SDT) is the coordinating agency on multilateral and regional trade negotiations at the WTO, AFCTA, Tripartite, COMESA and EAC. The Department also negotiates for Bilateral Agreements (BTAs) and Memoranda of Understandings (MOUs). In these regards, all trade protocols entered by the Country are coordinated by the SDT in collaboration with key public agencies and stakeholders. At the domestic front, wholesale and retail sector is the main conveyor of products from the production points to the end consumer. This automatically makes it a major facilitator of food sector objectives. The formulation of domestic and export policy therefore has a major impact on food safety policy.

- **Kenya Bureau of Standards (KEBS)**

The Kenya Bureau of Standards (KEBS) established in 1974 to promote the standardization of the specification of commodities and to provide for the standardization of commodities and codes of practice; and to coordinate development of Kenya standards. KEBS works through established technical committees, conformity assessment programs, metrology services, training and certification. Kenya Standards on Food and agriculture products address themselves to quality and safety aspects such as compositional, labelling as well as microbiological, contaminants and food additives limits. KEBS operates the National Enquiry Point (NEP) in support of the WTO Agreement on Technical Barriers to Trade (TBT). KEBS is also the National Codex Contact Point for Kenya and consequently the Bureau receives all the draft Codex food standards and related texts documents and commenting on them thereby developing Kenya standards. KEBS has also established the National Codex Executive Committee and sector specific technical committees corresponding to those of Codex for purposes of standards development.

KEBS carries out quality inspections of local products and imports covering including food, beverages, vegetable oils and fats. In addition KEBS conducts market surveillance to monitor the quality and safety of goods in the local market thereby protecting Kenyan consumers from substandard and unsafe products. In accordance with the Standards Act (Cap 496) certification programmes are conducted on all processed food products destined both for export and domestic markets. KEBS controls food imports at several ports of entry, including Mombasa, Jomo Kenyatta International Airport (JKIA) and various official border posts. KEBS inspection procedures recognize controls implemented by the exporting country, particularly for regional trade where mutual recognition agreements for conformity assessment procedures exist. KEBS provides food business operator (FBO) registration service as a government-regulated sanitary

authorization for individual products or establishments that process, pack, transport or commercialize foods.

KEBS provides testing services in areas of Food and Agriculture (among other sectors), to a wide range of clientele. Testing of agro-food products is carried out against national standards, international standards, and specific government and other client specifications. The purposes for testing are varied and includes: valuing of goods for purposes of trade; checking for conformity to standards; part of investigation on product complaints; checking for composition of and strength of materials; confirming absence or presence of banned ingredients; performance tests; and safety tests. KEBS Testing laboratories implement International standard ISO/ IEC 17025 on general requirements for competence of testing laboratories.

2.4.3 Ministry of Health

The Ministry of Health (MOH) is mandated to support the attainment of the health goals of the people of Kenya by implementing priority interventions in public health, among others. The MOH provides policy on management of communicable and non-communicable diseases including those that are food borne. The MOH delivers its mandates under the provisions of two main Acts of Parliament- the Public Health Act Cap 242 and the Food, Drugs and Chemical Substances Act Cap 254 Laws of Kenya. Enforcement of the law is done through Public Health Officers, appointed under the Public Health Act (Cap 242) section 9(1). They carry out duties as specified in both Cap 242 and Cap 254. The focal point for food safety under the Ministry of Health is the Division of Food Safety and Quality.

2.4.4 Ministry of Water, Sanitation and Irrigation

The Ministry of Water, Sanitation and Irrigation is responsible for;

- (i) Water resources management policy: Water catchment area conservation, control and protection; water and sewerage services management policy; water and sewerage services management policy; waste water treatment and disposal policy, water quality and pollution control.
- (ii) Sanitation management: Management of public water schemes and community water projects; domestic water storage and development; development of dams for domestic and industrial water uses; water storage, flood control and dykes;
- (iii) National irrigation policy and Management: Management of irrigation schemes management of irrigation schemes; irrigation water harvesting and storage.
- (iv) Clean and safe water is essential for human consumption as well as in use along safe food value chain.

2.4.5 National Biosafety Authority (NBA)

National Biosafety Authority guides on Safety of food from genetically modified organisms and use of genetically modified organisms in food production and medicines manufacture and uses.

2.4.6 County Governments

The County Governments undertake controls applied to domestic markets. Production of food items are done at the county where County Governments offer technical support. They are responsible for extension services on Good Agricultural Practices (GAP) on safe production and handling of food items. The County Governments have food safety inspectorate services supported by central competent authorities.

2.5 Food Testing Services

Food Monitoring and Epidemiological Data Laboratories are an essential component of a food control system. In terms of food safety, testing determines presence and levels of physical, chemical or microbiological contaminants in food. Testing can range from rather simple to highly sophisticated and complex methods. The laboratories need to carry out their tests and analysis according to accepted international standards for laboratories. For the most prevalent food-borne illnesses, national food safety agencies can collect samples anywhere in the country and immediately ship them to a laboratory for confirmation. Kenya has a network of laboratories that can carry out identification and documentation of biological, physical, and chemical agents that can adversely affect public health and food safety, and has invested significantly to establish and maintain food laboratories. For example, KEBS, DVS, KDB and KEPHIS laboratories have laboratory sustainability and business plans in place. Other testing options are found in research institutions such as the University of Nairobi; Jomo Kenyatta University of Agriculture and Technology (JKUAT); International Livestock Research Institute (ILRI); and the Kenya Agricultural and Livestock Research Organisation (KALRO). The Ministry of Health carries out clinical diagnosis and laboratory confirmation on samples from anywhere in the country through a nationwide clinical laboratories network. The main public sector laboratories used to carry out clinical diagnosis include the National Public Health Laboratories (NPHL); the Government Chemist; the Directorate of Veterinary Services (DVS); However, there are currently no designated reference laboratories for some prevalent food-borne illnesses and zoonoses. In the private sector, there are a variety of laboratories providing food testing services. These include SGS, AgriQuest, Analabs, amongst others. A number of food business operators also have in-house laboratories for food quality control purposes, but are not readily accessible to external users. Most of these laboratories have either ISO 17025 accreditation or participate in proficiency testing schemes necessary to ensure credibility of test results and overall performance in laboratory management.

2.6 Food Inspection and Certification Services

Food Inspection service has as its principle objective to ensure that food products meet their sanitary standards throughout the food chain, while registration service is government-regulated sanitary authorization for individual products or establishments that process, pack, transport or commercialize foods. It is necessary that food control agencies have the capability and authority to prevent the contamination of food products along the food chain through both inspection and registration services.

Several bodies in Kenya provide food inspection services. In the public sector, Government regulatory agencies include AFA, KDB, DVS and KFS. At the industrial level, the inspection services are carried out by KEBS. AFA carries out inspections and registration for all food commodities from crops, while DVS and KDB register abattoirs and dairy facilities respectively for purposes of inspection and certification of these food commodities. Registration and inspections for fish and fish products are carried out by KFS. KEBS carries out certification programmes on all processed food products destined both for export and domestic markets, in accordance with the Standards Act (Cap 496).

The administration and implementation of food laws require a qualified, trained, efficient and honest food inspection service. In this regard, these food control agencies in Kenya are investing in continuous training of their inspectors to gain knowledge on the relevant food laws and regulations, their powers under those laws, and the obligations such laws impose on the food

sector. Since the reputation and integrity of the food control system depends, to a very large extent, on their integrity and skill of inspectors, food control agencies gazette their inspectors once they can demonstrate reputation and competence in their work through on-the-job training and supervision.

Currently, the national food control agencies have inspection and registration services capable of making periodic inspections, taking samples, and certifying food for local consumption, assuring compliance with national standards and facilitating surveillance. However, inspection services are largely reactive based on problems presented or perceived.

2.7 Information, Education/Training and Communication

The functioning of food safety control systems is information intensive but information flow is poor. Further, use of information communication technologies is limited to some agencies curtailing National information management. The general awareness by the public, stakeholders and some food business operators along the value chain on food safety is insufficient. The low awareness may be attributed to inadequately incorporated food safety issues at early stages of growth and in the education system. This is further aggravated by inadequate training on responsibilities and obligations on food safety, systems and processes.

Further, communication on food safety matters to the consumers, stakeholders and the food business operators is uncoordinated as each agency tends to communicate their food safety issues independently. There is inadequate communication between agencies during notifications and emergencies. This has resulted in trade issues and delayed response in decision making. There has also been a lapse by consumers and food business operators in adequately utilizing available communication channels to the food safety agencies.

2.8 Traceability

In Kenya traceability awareness is well established for some export products and some targeting high end consumers. This is not the case for all locally consumed products thereby posing a challenge to food safety risk management.

In Kenya, there are many smallholder primary producers often with fragmented production systems. The practice is that raw products produced by smallholder farmers are frequently aggregated at the collector/intermediary level, presenting the challenge traceability systems face when bulking occurs. Traceability systems often require documentation that small-scale market actors often lack. Currently, the National and some County governments have programs for farmer registration which present opportunities for enhancement of traceability systems.

2.9 Emerging and Re-emerging Food Safety Issues

The emerging and re-emerging food safety challenges include rampant malpractices in food production, processing, preservation, labelling and vending; food fraud; food adulteration; misuse of additives and drugs in food and animal production; poor ethos; biotechnology; information technology; dietary supplements; impacts of climate change; new pathogenic microorganisms and agents. Most of the products designated as convenience or ready to eat foods are often prepared under unhygienic conditions and may deliberately be contaminated. In addition, most products condemned due to not meeting the food safety requirements often find their way back to the markets and end up with the consumers.

2.10 Food Safety Financing

The funding for food safety is inadequate and not prioritized within the line ministries and stakeholders' agencies to conduct the desired activities. Resources to support the various operations in terms of laboratory infrastructure, human resource capacity and management systems to comply with national and international food safety requirements are core for successfully implementing the spirit of the food safety policy. Efforts are also curtailed by the limited private sector participation in food safety financing. While there exists some capacity in public universities to carry out research to respond to food safety challenges, these institutions will require much more support to make their contribution more sustainably.

Current sources of food safety financing include: -

- Government through recurrent and development vote
- Accrued revenue from levies, fees and charges
- Appropriation in Aid (A.I.A).
- Development partners
- Private sector support
- Programme/projects support

While efforts are there, much more will require to be done in order to provide strong financing mechanisms.

2.11 Environmental concern on food safety

Food safety is threatened by numerous contaminants, which can originate from environmental pollution, such as heavy metals and poly-aromatic hydrocarbons; dioxins, chemicals used in the production of food, such as pesticides and veterinary drugs; contaminants formed during food production and cooking; contaminants arising from food packaging, or natural toxins in food; air pollutants such as sulphur dioxide

Water quality and its impact on food products and various operations in food industries are often underestimated. Such underestimation often leads to mismanagement of water, equipment operation and maintenance issues, loss of revenue, food safety, and product quality

The needs of environmental protection from waste generated are largely overlooked, and a lack of knowledge about the impact on the environment and its health effects constitute food security/safety problems.

2.12 Summary of Challenges

1. Inadequate capacity for risk analysis
2. Use of outdated laws that do not reflect risk analysis framework
3. Overlaps and gaps in regulatory bodies across ministries with a food safety mandate.
4. Poorly resourced and disjointed surveillance, with inadequate tools and human capacity to undertake routine surveillance exercises.
5. Low Public awareness on Food Safety issues.
6. Inadequate level of service from accredited and approved laboratories. Inspection bodies under-resourced in terms of testing budgets
7. Limited dedicated human resource capacity for food safety operations across the various agencies mandated to carry out food safety functions, including inspections.
8. Inadequate mainstreaming of food safety issues into formal curricula at various levels

of training institutions.

9. Disjointed/weak risk communication between government, private sector on food safety networks
10. Limited capacity for the implementation of appropriate food traceability systems
11. Lack of adequate budgets for testing for official control and surveillance
12. Limited use of information communication technologies in food safety

2.13 Rationale

The Constitution of Kenya 2010 guarantees food safety to all the people of Kenya. Food and feed contamination can occur at any level from production, handling, storage, processing, packaging, distribution and preparation. Food systems should thus ensure that food and feed is produced and distributed through a safe process that results in wholesome products fit for human consumption. Increased demand for food coupled with reduction of arable land and water has led to adoption of technologies of agricultural production and enhanced trade which requires adequate monitoring of biological, chemical and physical food hazards.

An inadequate food hazards monitoring system, inspection and testing, of food and food products impact negatively on food quality and safety. Poor coordination and enforcement of existing legislation and standards leading to poor implementation of policy and legislation by responsible agencies in food safety control and monitoring activities. This results in frequent episodes of disease such as diarrheas and cancer. In relation to the objects, principles and procedures of food laws in Kenya, there are twenty-five statutes in the space of food safety control whose enforcement is not well coordinated. There exist overlaps and duplication of mandates in existing legislations. There is need to strengthen existing institutional capacities, linkages and facilitate public/private sector partnerships. When the various regulatory agencies adopt different measures governing food, these differences undermine Kenya's competitiveness in international food trade and expose citizens to risks of unsafe food, which may also impede the free movement of food internally and externally. Food safety responsibility in Kenya encompasses a variety of portfolios at the national and county levels. It is therefore necessary to define a distinct national coordination mechanism with capability of safeguarding the food supply in Kenya, and to support counties in implementing comprehensive food safety programmes. There exist no policy or legal framework to establish and maintain an early warning and risk management mechanisms to prevent food hazards and creation of a data bank of food safety issues. There is too much reliance on end product standards and laboratory testing rather than using preventive approaches. Empirically, there has been inadequate scientific input and investment in a robust risk management system, with lethargy in upgrading infrastructure to support risk assessment. Improved risk analysis capacity would mitigate emerging and re-emerging food safety challenges and strengthen mechanisms for validation, inspection, certification and self-assessment of food safety practices along the food chain. There is low public awareness on food safety and control mechanisms, and improving information, education and communication systems would ensure risk reduction, effective recall and traceability from farm to fork. There are weak and fragmented food analysis laboratories. This calls for the strengthening of their capacity and coordination to comply with national and international food safety requirements. This will in turn contribute to accurate and reliable detection and quantification of contaminants in locally produced and imported foods, thereby enabling better monitoring and enforcement of food safety requirements. This will result in safer foods for consumers, thereby contributing to decreased mortality and morbidity from food borne illness (linkage to SDG2 and Agenda 2063). Improving food safety is also a key in achieving Sustainable Development Goals. Government has the responsibility to make food safety

a public health priority, and to develop policies and legislative frameworks to achieve this objective. Further, it should establish and ensure implementation of an effective food safety system that would guarantee food producers and suppliers along the whole food chain operate responsibly and supply safe food to consumers. There is need in Kenya to establish and maintain a rational, integrated farm-to-fork food safety system that harmonizes inter-agency efforts, minimizes inter-agency conflict and overlap, and ensures the protection of public health and safe food trade consistent with WTO/SPS and other international requirements. Government has responsibility to make food safety a priority, and to develop policies and legislative frameworks to achieve this objective. In this regard, the National Food safety Policy of 2013 is reviewed to address the identified gaps. The National Food Safety Policy of 2021 will address the gaps and all the emerging issues and align with the constitution 2010.

2.14 Scope

The policy covers food and feed safety aspects along the food chain continuum. It includes all public and private entities involved in the scientific, technical, operational and management aspects of food safety and control systems with the objective of protecting public health and promoting trade. Additionally, the policy addresses the national food safety control systems; legal and institutional framework, processes and practices, continuous training of stakeholders, public education, awareness creation and strengthening of food safety infrastructure. Further, the Policy will adequately address food safety concerns, ensure that food safety recommendations are in line with regional and international statutes of food safety governance and effectively address hazards through a risk-based approach. The core component of the policy will be driven by the enactment and enforcement of appropriate legislation which will impact on food safety.

3.0 POLICY GOAL AND OBJECTIVES

3.1 Vision

A healthy population with increased life expectancy through the consumption of safe and healthy diets.

3.2 Mission

To provide safe food from production to consumption through a robust food safety control system that is grounded on a risk-based approach and sound scientific principles.

3.3 Policy goal

To advance the national food safety system to prevent, detect and manage food safety risks for protection of human health and promotion of food trade consistent with national, regional and international requirements.

3.4 Broad Policy objective

1. To ensure consumer protection through safe food, from production to consumption.
2. To align food control to local, regional and global requirements, in order to facilitate trade.
3. To increase food safety awareness at all levels.

3.5 Specific Policy objectives

1. To align existing food safety policy and legal frameworks with current food safety needs.
2. Develop a food control system that is grounded on a risk-based approach and decisively addresses all food safety concerns from farm to fork.
3. To harmonize and strengthen coordination, oversight, enforcement and functionality of food control mechanism in Kenya.
4. Enhance institutional capacity for food safety risk analysis.
5. Align food control regulatory framework to regional and international agreements.
6. To strengthen human resource development and research in food safety.
7. Establish a national food safety control information management system.
8. Promote institutionalization of food safety in Kenya's education curriculum.
9. To establish a national food safety communication mechanism among stakeholders.
10. Promote the adoption of digital technologies in food safety systems.
11. To strengthen mechanisms for validation, inspection, certification and self-assessment for food safety practices along the food value chain.
12. To establish systems that mitigate emerging, re-emerging food safety challenges and environmental concerns.
13. Propose funding mechanism for food safety.

3.6 Guiding Principles

1. Stakeholder participation.
2. Clearly defined roles and responsibilities of actors.
3. Farm to fork approach.
4. Inter-sector coordination and collaboration between lead agencies.
5. Risk-based approach.
6. Coherence with other policies, instruments and other governance structures at national, regional and global level.

4. POLICY ISSUES AND INTERVENTIONS

Most food safety challenges facing the country are attributed to the management system's inability to detect potential risks and gaps, share information, plan together and identify appropriate strategies for collaborative management of food safety in the supply chain and protect the consumer. Due to poor coordination within the food supply chain, Kenya has faced challenges in areas such as legal and regulatory framework, information, education and communication; traceability; infrastructure and capacity; emerging and re-emerging food safety issues; validation, inspection, certification and self-assessment; institutional framework and funding mechanism.

4.1 Policy Issue No. 1: Policy and Legal framework

In Kenya, the food safety control system is multi-sectoral in approach and is embodied in various statutes implemented by various Government ministries/ departments and regulatory agencies which are independent of each other in their operations.

National regulatory authorities should take a risk-based approach to the regulation of food.

This includes:

- a. Developing effective science-based data systems to systematically identify areas of greatest risk;
- b. Participating in research, data sharing, technology adoption, and training activities with relevant partners;
- c. Growing capacity to assess impacts of regulation on public health and food trade;
- d. Communicating about food safety risks including the uncertainty around them especially during food crisis; and
- e. Communicating the ways regulation improves quality, safety, and access using different strategies to convey this information to government leaders, regulated industry and the public.

Policy intervention;

National Government shall,

1. Ensure that policies and legal framework addressing food safety are regularly reviewed to address emerging and re-emerging food safety issues.
2. Establish a National food safety legal governance structure.
3. Support review of legislations in food safety to provide clearly defined mandates in the food safety control system.

The County Government shall;

1. Ensure food safety control laws are implemented.
2. Review laws in food safety to align with the provisions of the National food safety system control.

4.2 Policy Issue No. 2: Institutional Framework

The coordination and oversight mechanism among the institutions that deal with food safety control is currently inadequate. This has created lapses and overlaps of mandates with ensuing inefficiencies in food safety system. Food safety needs to be organized in a more coordinated and integrated way to deliver a high level of public health and consumer protection in accordance with both local and international requirements. A multi-sectoral coordination mechanism with a leadership function and administrative structures for the development and implementation of an integrated national food control strategy is vital.

Policy Interventions

The National Government shall;

1. Establish a multi-sectoral coordinating mechanism.
2. Strengthen institutional capacities on food safety and harmonize institutional frameworks.
3. Enhance food safety research to develop a scientific data bank that informs decision making in the food safety system.

The County Government shall;

1. Undertake co- regulation with the National competent authorities.
2. Strengthen institutional capacities, harmonize institutional frameworks and support food safety research.
3. Sensitize all stakeholders/actors on national, regional and international obligations

4.3 Policy issue No. 3: Information, Education/Training and Communication

It is necessary that food control agencies inform their users in an effective and timely manner about their activities and programs of food safety. Although the functioning of food safety control systems is information intensive, the general public awareness on food safety is insufficient. The government will promote awareness and provide guidelines on information gathering and flow along the food safety continuum.

Policy intervention;

National Government shall;

1. Ensure there is an effective and functioning food safety control information management system.
2. Promote awareness creation on food safety.
3. Provide specialized training for staff involved in food safety.
4. Ensure adequate technical staff in institutions involved in food safety.
5. Include food safety in the academic curriculum of the relevant training institutions and scale up research in food safety.
6. Promote use of information communication technologies in food safety.

The County Government shall:

1. Promote awareness creation on food safety within the County.
2. Implement the established national food safety communication mechanism.
3. Undertake food safety training of stakeholders on food safety at the County.
4. Provide periodic report for the food safety information management system.

4.4 Policy Issue No. 4: Traceability

Traceability is an important risk management tool in case of food safety concern and impacts food trade. Traceability facilitates the withdrawal of foods and enables consumers to be provided with targeted and accurate information concerning implicated products. Increased consumer awareness on food safety and globalization has led to stringent requirements for traceability during market access in food trade.

Policy interventions

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The National Government shall:

1. Put in place guidelines to ensure traceability of food, feeds and their ingredients.
2. Require food business operators to establish systems that ensure traceability from farm to fork. Support implementation of principles of traceability.
3. Support formation of food value chain associations to enhance traceability.
4. Establish a central repository of information on food traceability.

The County Government shall:

1. Implement the national guidelines on traceability of food, feeds and their ingredients including to providing for data capture, storage and retrieval to be used by all the stakeholders.
2. Mobilize value chain actors into groups, registered organizations and cooperatives for effective implementation of traceability.
3. Coordinate market actors for enhanced traceability.

4.5 Policy Issue No 5: Surveillance and Laboratory Food Analysis

An effective food safety assurance system requires high investment in terms of competencies, skills, institutional development, costs of operations and maintenance, implementation of international trade agreements (WTO/SPS), infrastructure, and review of legislation.

Resources to support the various operations in terms of funding, laboratory infrastructure, human resource capacity and management systems to comply with national and international food safety requirements are core for success. The laboratory services provided by the regulatory agencies have limitation in scope of analysis and equipment and in some cases not up-to date with the new technologies. With the increasing trade and stringent trade requirements, demand for laboratory analysis from inspections, product certification, quality assurance and surveillance over stretch current capacity. Inadequate surveillance and laboratory analysis has often led to delayed detection of potential outbreaks of food borne diseases.

Policy interventions

The National and County Government shall:

1. Compile and maintain an inventory of food safety laboratories and their scope of analysis.
2. Promote availability of accredited and approved testing laboratories, both in public and private sector.
3. Support establishment of equipped specialized regional laboratories.
4. Enhance capacity of the reference laboratory and accreditation of both private and public laboratories.
5. Develop and maintain coordination mechanism for food safety surveillance.
6. Develop and strengthen reporting and information sharing system.
7. Make provisions for information sharing and reporting of food safety complaints by the public.
8. Develop an early warning system on food borne diseases.
9. Strengthen capacity to undertake formal risk analysis and effective participation in standards development

4.6 Policy Issue No 6: Validation, Inspection, Certification and Self-Assessment

The government will facilitate development and strengthening validation, inspection, certification and self-assessment in food safety control system. All players in the entire food chain will be responsible for ensuring safe food to the public. The government will strengthen food inspection agencies at all levels of the food chain to enhance compliance. The government will institute a

mechanism for nominating and coordinating inspection bodies, to ensure that only safe food is available to the public.

Policy Interventions

The National and County Government shall:

1. Develop and strengthen effective food safety official control system to ensure that food available to the public is safe.
2. Promote awareness among FBOs to develop and implement food safety measures.
3. Provide guidelines on information gathering and flow along the food safety continuum.
4. Ensure that food business operators (FBOs) have the primary responsibility of managing food safety of their processes and products.
5. Strengthen capacity of food control agencies including food inspection services to enhance compliance.
6. Develop food safety information systems to support risk-based decision making.

4.7 Policy Issue No 7: Emerging and Re-emerging Food Safety Issues

The emerging and re-emerging food safety challenges include street vended foods, convenient and ready to eat foods; malpractices in food production, processing, preservation, labeling; food fraud; biotechnology; information technology; dietary supplements; new pathogenic microorganisms and agents.

Street vended food or ready to eat foods are often prepared and sold under unhygienic conditions posing a risk to the public health. There is limited research on emerging and re-emerging food safety issues.

Policy Interventions

The National and County Government shall:

1. Provide a framework for emerging and re-emerging food safety issues.
2. Training on Good Agricultural Practices (GAP), Good Hygiene Practices (GHPs), and Good Manufacturing Practices (GMPs) and institute penalties for noncompliance.
3. Strengthen enforcement to curb the malpractices in food safety.
4. Strengthen capacity for surveillance of emerging and re-emerging food safety challenges.
5. Develop guidelines for street vended and convenient ready to eat food.
6. Strengthen collaborative mechanisms among stakeholders to address emerging and re-emerging food safety issues.
7. Enhance consumer awareness and feedback mechanism for emerging and re-emerging food safety issues.
8. Provide research framework for mitigation of risks from emerging and re-emerging food safety issues.

4.8 Policy Issue No 8: Food Safety Financing

Resources to support the various operations in terms of funding, laboratory infrastructure, food safety research, human resource capacity and management systems to comply with national and international food safety requirements are core for success. The budgetary allocation towards food safety is inadequate and not prioritized in some line ministries.

Policy interventions

The National and County Government shall:

1. Make specific budgetary allocation for food safety and develop strategies for resource mobilization.
2. Development and financing of food safety programmes.
3. Support funding for food safety research.

5. POLICY IMPLEMENTATION FRAMEWORK.

This policy addresses Food Safety concerns in the broad areas of legislation, institutional framework, monitoring and evaluation, traceability, resources, information, education and communication.

The implementation of this policy will follow sector approach with interventions carried out along food chain from the farm to fork. Institutions will address food safety aspects along food chain based on their mandates. Intersectoral and sectoral committees will be established within the proposed food safety governance framework.

The proposed coordinating mechanism comprise an institution at the National level where all food safety control system agencies are coordinated. At the County Government level, County Food Safety Committees shall be formed to facilitate coordination of food safety activities at the County level.

5.1 Responsibilities of the National Government

Legislative

- a) Review all relevant laws and regulations to be in tandem with the changing trends in food safety and food trade. Establish a mechanism of coordinating food safety matters.
- b) Prepare a Food Safety Act that will be responsive to national, regional and international obligations, particularly those embedded in the World Trade Organization's Agreement on the Application of Sanitary and Phytosanitary Measures;

5.2 Responsibilities of the established Food safety coordination and oversight Office

The established of the Food safety coordination and oversight Office will be a body in which ministries, actors and agencies will collaborate in planning, implementation, monitoring and evaluation of activities. The overall coordination and oversight of all aspects of implementation of food safety related activities by the lead agencies in the country will be bestowed on the Food Safety Controller. The specific aspects shall include;

- i. Protect and promote human health;
- ii. Facilitate the orderly development of the food and feed industries as well as fair practices in food trade;
- iii. Fulfil the international obligations, particularly those that arise of Kenya's membership in the World Trade Organization and
- iv. Coordinate and oversight all the existing food control infrastructure and services and redefine their roles in order to eliminate areas of overlap and conflict.
- V. Coordinate and oversight the disposal/ destruction of all condemned Food products

5.3 Responsibilities of the County Governments

The County Governments shall be responsible of implementation of food safety laws at the county level and shall also have to establish the county food safety coordination committee. They will

also be instrumental in capacity development of both the food producers and food-based organizations.

6. FINANCING

Implementation of this policy will be financed through funds allocated through an annual budgeting cycle in line with annual National implementation plan. The office of the food controller will develop financing streams to support core functions of his office. For example, there is a need to ascertain consistent funding to undertake risk assessments, surveillance, testing, risk communication amongst others. Further, the office shall develop financial instruments including loans and grants to provide access to investment funds for food chain operators. These will go into upgrading facilities, investing in cold chain systems, food safety management systems such as HACCP, investing in the right competencies and strengthening the capacities of the workers.

7. MONITORING AND EVALUATION

For successful implementation of the Food Safety Policy, monitoring and evaluation framework will be developed as an integral component to ensure the policy objectives are achieved in a cost effective, coordinated and harmonized approach at both the National and County levels. Progress in food safety systems will be effectively guided by developing robust monitoring and evaluation mechanism. Technical audits of the food safety system will establish the level of success in achieving and maintaining the desired food safety status. The audits will be carried out through risk analysis. There are approaches which will be utilized for technical assessment which include performance contracting, compliance monitoring, quality control, evaluation of food safety system and use of the monitoring and evaluation tool. The National Government in collaboration with the County governments, Departments and Agencies (MDAs), private sector and other stakeholders will develop monitoring and evaluation framework within six months of the Policy implementation. The monitoring and evaluation framework is expected to be consistent with the National Integrated Monitoring and Evaluation Systems (NIMES) and have clear terms of reference for relevant stakeholders in data collection and reporting at all levels. There will be an Annual Review Report (ARR) on implementation of the policy. The policy will be reviewed periodically to address the sector challenges and emerging issues.

The guiding principles for monitoring and evaluation shall include: -

- i. Risk assessment and prioritization of food safety issues.
- ii. Strengthened food safety surveillance, reporting and data management for decision making.

8. COMMUNICATION STRATEGY

Successful implementation of the food safety policy will depend greatly on an effective and efficient communication system. This will require the development of a communication framework for implementation of the policy within six months of the policy approval in collaboration with relevant stakeholders. The framework will facilitate an effective information flow between the National and County governments, the private sector, all actors along food chain, the public, media and other stakeholders in food industry. Efficient communication will provide opportunities for public dialogue and knowledge sharing for decision making and evidence-based planning at all levels. The communication strategy will be reviewed from time to time in order to improve its efficiency and effectiveness.

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